

Mohd. Zafer v. State of Uttar Pradesh and Ors.

High Court of Judicature at Allahabad · Division Bench · 6 February 2023 · WRIT - C No. 1340 of 2023 · **Disposed; citation withdrawn, fresh order under Supply Code**

HEADNOTE

Writ against a theft-dues demand and recovery citation disposed after the licensee withdrew the citation dated 28 April 2022 and agreed to hear the consumer. Any fresh order may be passed only after following the procedure in the Electricity Supply Code, 2005. The demand notice dated 19 November 2020 was not adjudicated.

FACTUAL SUMMARY

Mohd. Zafer brought a writ against the State of Uttar Pradesh and six others to challenge a demand notice dated 19 November 2020 issued by respondent no. 6 and a recovery citation dated 28 April 2022 issued by respondent no. 5, both seeking electricity dues in a case of alleged theft. The petition was adjourned on 16 January 2023 and again on 23 January 2023. On 31 January 2023 counsel for the respondent Corporation sought time to show that the provisions on assessment had been followed before the recovery citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

Supply Code procedure before a fresh order in alleged theft

HOLDING

On the respondent Corporation's statement that the recovery citation dated 28.04.2022 stood withdrawn and that the petitioner would be heard before any fresh order, the petition was disposed of with liberty to the respondents to pass fresh orders only after following the procedure laid down in the Electricity Supply Code, 2005. ¶ 4

PRINCIPLE TAGS

fresh-order-only-after-supply-code-procedure

The writ was disposed once the recovery citation was withdrawn, leaving the licensee to hear the consumer and to pass any fresh order only after the Electricity Supply Code, 2005 procedure. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 19.11.2020 AND WHETHER THE THEFT ASSESSMENT HAD FOLLOWED THE SUPPLY CODE

The recovery citation was withdrawn. The respondents were left to pass a fresh order after the Code procedure and a hearing. ¶ 4